

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF FATMA AKALTUN FIRAT v. TURKEY

(Application no. 34010/06)

JUDGMENT

STRASBOURG

10 September 2013

FINAL

20/01/2014

This judgment has become final under Article 44 § 2 of the Convention. It may be subject to editorial revision.



In the case of Fatma Akaltun Fırat v. Turkey,

The European Court of Human Rights (Second Section), sitting as a Chamber composed of:

Guido Raimondi, *President,*
Danutė Jočienė,
Peer Lorenzen,
András Sajó,
Işıl Karakaş,
Nebojša Vučinić,
Helen Keller, *judges,*
and Stanley Naismith, *Section Registrar,*

Having deliberated in private on 9 July 2013,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application (no. 34010/06) against the Republic of Turkey lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") by a Turkish national, Ms Fatma Akaltun Fırat ("the applicant"), on 9 August 2006.

2. The applicant was represented by Mr Kamil Tekin Sürek, a lawyer practising in İstanbul. The Turkish Government ("the Government") were represented by their Agent.

3. The applicant alleged, in particular, that her detention by a police officer in a hospital while she was distributing leaflets published by her Union had been in violation of her rights under Articles 5 § 1 and 11 of the Convention.

4. On 25 August 2011 the application was communicated to the Government. It was also decided to rule on the admissibility and merits of the application at the same time (Article 29 § 1).

THE FACTS

THE CIRCUMSTANCES OF THE CASE

5. The applicant was born in 1967 and lives in İstanbul.

6. The facts of the case, as submitted by the parties and as they appear from the documents submitted by them, may be summarised as follows.

7. The applicant is a nurse working at Eyüp State Hospital. She is also an executive member of the Public Workers' Union (*KESK; Kamu Emekçileri Sendikası*).

8. On 26 April 2005 the applicant was distributing leaflets to members of the Union working at the hospital. The leaflets had been published by the Union to invite its members to forthcoming May the First International Labour Day celebrations.

9. According to the applicant, a police officer working at the hospital got hold of the leaflets and tore them up. The officer also grabbed the applicant by the arm and forcibly put her in a room used for police purposes at the hospital. The applicant and two of her colleagues documented the police officer's behaviour in a handwritten report.

10. Two lawyers, who had been informed of the incident by the applicant's colleagues, arrived at the police room approximately an hour later and spoke to the police officer. The officer told the lawyers that the applicant was not under arrest. The applicant was released following the arrival of the lawyers.

11. After her release the applicant was examined by a consultant doctor at the hospital who stated in a report that there were [marks of] trauma on the applicant's left arm.

12. The same day the police officer stated in a report that he had "invited the [applicant] to the police room" so that he could check whether the distribution of the leaflets was "lawful". However, the applicant had "shouted" at him and told him that she would be making an official complaint against him. After he had been told by his superiors that there was nothing wrong with the applicant distributing the leaflets, the applicant had left.

13. The following day the applicant contacted the Eyüp prosecutor and was referred by that prosecutor to the Eyüp branch of the Forensic Medicine Institute for a medical examination. The doctor who examined the applicant on the same day observed two areas of bleeding under the skin (hyperaemia) on her left arm, each measuring two centimetres, and noted his findings in a report. The doctor considered that the applicant's injuries would prevent her from working for one day.

14. On the same day the applicant submitted an official petition to the Eyüp prosecutor's office, complaining about the use of force and the false imprisonment by the police officer. She submitted that she had been unlawfully detained by the police officer for approximately one hour. She also drew the prosecutor's attention to her right, guaranteed by section 18 of the Law on Public Workers' Unions (Law No. 4688), to participate in union activities after working hours or, with the permission of her employer, during working hours. In her petition the applicant named two of her colleagues who had witnessed the incident. With her petition she also enclosed the doctors' reports.

15. The same day the Chairman of the Public Workers' Union also submitted a similarly-worded complaint petition to the same prosecutor and complained about the treatment to which the applicant had been subjected by the police officer.

16. On 28 April 2005 the prosecutor questioned the police officer in connection with the applicant's allegations. The police officer denied that he had used force to put the applicant into the police room. He told the prosecutor that he had been doing his job because the applicant had been distributing leaflets during working hours. He added that he had been acting in accordance with the Law on the Powers and Duties of the Police (Law No. 2559).

17. The applicant's two colleagues who had co-signed the handwritten report on the day of the incident (see paragraph 9 above) were also questioned by the prosecutor. They maintained that the police officer had been pulling the applicant by the arm and trying to take her to the police room.

18. Two senior doctors questioned by the prosecutor confirmed that they had seen the applicant in the police room where the applicant had told them that she was under arrest. The police officer had then told them that she was not under arrest and that the reason for her presence in the police room was because the police officer wanted to verify whether she had permission to distribute the leaflets.

19. On 23 June 2005 the Eyüp prosecutor decided not to bring proceedings against the police officer. The prosecutor considered that the applicant had been distributing the leaflets during working hours. The police officer had taken the applicant to the police room with a view to examining the contents of the leaflets and to establishing whether previous permission had been sought from the hospital administration for their distribution. Following the arrival of the hospital managers the applicant had been sent back to her duty station. Thus, the offence of false imprisonment had not been committed.

20. According to the prosecutor, the "redness" on the applicant's arm had been caused when the police officer grabbed her by the arm. Nevertheless, the police officer's action had not amounted to an assault. The prosecutor concluded that no permission had been sought from the hospital administration for the distribution of the leaflets. Thus the police officer had been doing his job and had not committed any offences.

21. The applicant lodged an objection with the Beyoğlu Assize Court against the prosecutor's decision. She pointed out, in particular, that even assuming that no previous permission had been sought for the distribution of the leaflets, that would have been a disciplinary matter for the hospital administration to pursue; the police officer had had no powers to investigate the matter or to deprive her of her liberty. She also disputed the prosecutor's finding that the police officer had wanted to examine the contents of the

leaflets. She argued that if the police officer had really wanted to examine the leaflets, he could have obtained a leaflet from another hospital worker and checked its contents, instead of using force against her and imprisoning her. In her objection the applicant also referred to her rights under the Convention.

22. On 30 May 2006 the Beyoğlu Assize Court rejected the objection and stated that the prosecutor's decision was in compliance with the applicable legislation and procedure.

THE LAW

I. ALLEGED VIOLATION OF ARTICLES 3 AND 5 OF THE CONVENTION

23. The applicant complained that she had been deprived of her liberty without any lawful ground and contrary to Article 5 of the Convention. Relying on Article 3 of the Convention she also complained that the police officer's actions when detaining her had amounted to ill-treatment within the meaning of Article 3 of the Convention.

24. The Government contested those arguments.

25. The Court observes that, according to the prosecutor's conclusion (see paragraph 20 above), which is not disputed by the Government, the hyperaemia on the applicant's arm was caused when the police officer grabbed her by the arm. Noting that the reason behind the police officer's actions was to remove her from the area where she was distributing leaflets and to put her into the police room, the Court deems it more appropriate to examine the force used by the police officer when dealing with the applicant's complaint concerning the deprivation of her liberty (see, in particular, paragraph 35 below). Thus, in the circumstances of the case, the Court considers that the applicant's above complaints should be examined solely from the standpoint of Article 5 of the Convention the relevant parts of which provide as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> (a) the lawful detention of a person after conviction by a competent court;
>
> (b) the lawful arrest or detention of a person for non- compliance with the lawful order of a court or in order to secure the fulfilment of any obligation prescribed by law;

(c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so;

(d) the detention of a minor by lawful order for the purpose of educational supervision or his lawful detention for the purpose of bringing him before the competent legal authority;

(e) the lawful detention of persons for the prevention of the spreading of infectious diseases, of persons of unsound mind, alcoholics or drug addicts or vagrants;

(f) the lawful arrest or detention of a person to prevent his effecting an unauthorised entry into the country or of a person against whom action is being taken with a view to deportation or extradition.

..."

A. Admissibility

26. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

B. Merits

27. The applicant maintained that she had been forced into the police room at the hospital and detained there unlawfully.

28. The Government argued that the applicant had not been taken into custody and had not been detained. She had been invited by the police officer to show the leaflets so that he could examine their contents with a view to verifying whether or not they contained any elements of a criminal nature. However, she had refused to comply with the police officer's request and the police officer had tried to take one of the leaflets. When she had resisted, the police officer had had to pull her arm. She had only sat in the office of the police officer in the hospital until the arrival of the hospital director. Upon his arrival, the hospital director had asked her to return to her duty. She could not, therefore, have been deprived of her liberty.

29. The Court reiterates the fundamental importance of the guarantees contained in Article 5 of the Convention for securing the rights of individuals in a democracy to be free from arbitrary detention by the authorities. It has reiterated in that connection that any deprivation of liberty must not only have been effected in conformity with the substantive and procedural rules of national law, but must equally be in keeping with the very purpose of Article 5 of the Convention, namely, to protect the

individual from arbitrary detention. In order to minimise the risks of arbitrary detention, Article 5 of the Convention provides a corpus of substantive rights intended to ensure that the act of deprivation of liberty be amenable to independent judicial scrutiny and to secure the accountability of the authorities for that measure (see *Kurt v. Turkey*, 25 May 1998, § 122, *Reports of Judgments and Decisions* 1998-III).

30. The Court notes that it is not disputed by the parties that the applicant was taken to the police room at the hospital by the police officer. What is in dispute, and what the Court must first establish, is whether or not the applicant was thus deprived of her liberty within the meaning of Article 5 of the Convention.

31. In order to determine whether someone has been "deprived of his liberty" within the meaning of Article 5 of the Convention, the starting-point must be his or her concrete situation, and account must be taken of a whole range of criteria such as the type, duration, effects and manner of implementation of the measure in question (see *Amuur v. France*, 25 June 1996, § 42, *Reports* 1996-III).

32. In this connection, the Court must emphasise that the characterisation or lack of characterisation given by a State to a factual situation cannot decisively affect the Court's conclusion as to the existence of a deprivation of liberty (see *Creangă v. Romania* [GC], no. 29226/03, § 92, 23 February 2012). Thus, the fact that both the national authorities and subsequently the respondent Government considered that the applicant had not been arrested and detained, does not automatically mean that the applicant was not deprived of her liberty.

33. Furthermore, Article 5 § 1 of the Convention may also apply to deprivations of liberty of a very short length (see *Rantsev v. Cyprus and Russia*, no. 25965/04, § 317, ECHR 2010 (extracts) and the cases cited therein; *Foka v. Turkey*, no. 28940/95, § 75, 24 June 2008). For example, a person detained for a period of one hour in the case of *Shimovolos v. Russia* (no. 30194/09, § 49, 21 June 2011), and a person whose detention lasted 30 minutes in *Gillan and Quinton v. the United Kingdom* (no. 4158/05, § 57, ECHR 2010 (extracts)), were both held by the Court to have been deprived of their liberty within the meaning of that provision.

34. In the present case the applicant claimed – and the Government have not disputed – that she was in the police room for approximately one hour. In the absence of any official documentation showing the time of the incident, let alone a detailed account of how the incident took place (see *Creangă*, cited above, § 90), the Court considers that the benefit of the doubt should be given to the applicant (*Baisuev and Anzorov v. Georgia*, no. 39804/04, § 52, 18 December 2012 and the cases cited therein). The Court thus accepts that the applicant was kept in the police room for approximately one hour.

35. According to the Court's established case-law, coercion is a crucial element in its examination of whether or not someone has been deprived of his or her liberty within the meaning of Article 5 § 1 of the Convention (see, for example, *Foka*, cited above, §§ 74-79). The applicant in the present case did not volunteer to go to the police room, and was manhandled and physically dragged there by the police officer. She was only released after the arrival of the lawyers and the hospital director. In this connection the Court also finds it noteworthy that neither the prosecutor nor the Government have sought to argue that the applicant was free to leave the police room.

36. In light of the above the Court concludes that the applicant was forcibly taken to the police room where she was detained against her will. She was thus deprived of her liberty within the meaning of Article 5 § 1 of the Convention.

37. The Court must next ascertain whether the applicant's deprivation of liberty complied with the requirements of Article 5 § 1 of the Convention. The Court reiterates that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof (see *Jėčius v. Lithuania*, no. 34578/97, § 56, ECHR 2000-IX).

38. The Court observes that the only reliance on, and the reference to the national legislation in the present case is to be found in the statement made by the police officer to the prosecutor. In his statement the police officer told the prosecutor that he had been acting in accordance with the Law on the Powers and Duties of the Police (see paragraph 16 above). He did not, however, elaborate as to what exact provision of that law allowed him to forcibly detain the applicant. The prosecutor, for his part, seems not to have given thought to questioning him on this point or to dealing with it in his decision closing the investigation (paragraphs 19-20 above).

39. The Court notes that, according to section 2 of the Law on the Powers and Duties of the Police, police officers' duties are twofold. Firstly, they have the duty to prevent activities which are not in compliance with the Laws, Rules and Regulations, Government orders and public order. Secondly, in relation to offences already committed, they are required to carry out their duties which are set out in the Code of Criminal Procedure and in other Acts of Parliament.

40. In the present case there is no suggestion that the applicant had committed any offences. The reason advanced for the police officer's actions both by the prosecutor and the Government is that she had been distributing leaflets during working hours. The Court observes that although, as suggested by the applicant herself, distributing leaflets during working hours may amount to a disciplinary matter, it is not a criminal offence. Neither has there been any suggestion by the Government or any of

the national authorities that the applicant's activities were in breach of any Laws, Rules and Regulations, Government orders or public order which would have necessitated the involvement of the police.

41. Nevertheless, and notwithstanding its reservations about the conformity of the police officer's actions with the substantive and procedural rules (*ibid.*), the Court does not consider it necessary to rule on whether or not the applicant's deprivation of liberty was "in accordance with a procedure prescribed by law", and deems it appropriate to proceed to examine whether her deprivation of liberty fell under any of the permissible grounds set out in the provisions of Article 5 § 1 of the Convention.

42. The Court notes that, in their observations the Government's submissions on the applicant's complaint under Article 5 of the Convention were limited to maintaining that the applicant had not been detained; they did not seek to argue that her deprivation of liberty had been in accordance with the provisions set out in the sub-paragraphs of Article 5 § 1 of the Convention.

43. In any event, the Court notes that the applicant's deprivation of liberty did not fall under sub-paragraphs (a), (d), (e) or (f) of paragraph 1 of Article 5 of the Convention. Nor was it covered by sub-paragraph (b), since there is no evidence or submissions to show that the applicant had failed to comply with any lawful court order or to fulfil any obligation prescribed by law. It thus remains to be determined whether the applicant's deprivation of liberty fell within the ambit of sub-paragraph (c).

44. As already noted above, the reason put forward by the national authorities and by the Government for the applicant's detention is her distribution of the leaflets during working hours. The Government have not sought to argue that distributing leaflets during working hours is a criminal offence or that the applicant had committed or was about to commit any other offence.

45. In light of the foregoing the Court finds that the applicant's detention did not have any legitimate purpose under Article 5 § 1 and was accordingly arbitrary. There has therefore been a violation of that Article.

II. ALLEGED VIOLATION OF ARTICLES 10 AND 11 OF THE CONVENTION

46. Lastly, the applicant complained that her rights guaranteed by Articles 10 and 11 of the Convention had been subject to interference and restriction without justification.

47. The Government contested that argument.

48. The Court considers that the applicant's complaints should be examined from the standpoint of Article 11 of the Convention alone, which reads, in so far as relevant, as follows:

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others..."

A. Admissibility

49. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

B. Merits

50. The applicant complained that she had been attacked while she was distributing leaflets published by her Union with a view to preventing her from carrying out union activities.

51. The Government denied that there had been an interference with the applicant's right to freedom of association. The police officer had only requested her to show him the leaflets which she had been distributing in a hospital, during working hours, and without having obtained the hospital administration's permission. Each work place had its own rules; even more so hospitals. The applicant, as a nurse, should have obtained permission or at least informed the chief doctor. She could have distributed the leaflets outside the hospital, in her own time and without any prior permission.

52. The Court considers that the intervention of the police officer and that police officer's resorting to the use of force, coupled with the applicant's subsequent detention, prevented the applicant from distributing leaflets published by her Union and constituted an interference with her rights under Article 11 of the Convention.

53. The Court reiterates that an interference will constitute a breach of Article 11 of the Convention unless it is "prescribed by law", pursues one or more legitimate aims under paragraph 2 of that provision and is "necessary in a democratic society" for the achievement of those aims.

54. The Court reiterates that the expression "prescribed by law" requires firstly that the impugned measure should have a basis in domestic law. It also refers to the quality of the law in question, requiring that it be accessible to the persons concerned and formulated with sufficient precision to enable them – if need be, with appropriate advice – to foresee, to a degree that is reasonable in the circumstances, the consequences which a given

action may entail and to regulate their conduct (see *Gorzelik and Others v. Poland* [GC], no. 44158/98, § 64, ECHR 2004-I).

55. It is to be noted that the sole justification proffered by the Government for restricting the applicant's union activities was the distribution of leaflets in a hospital during working hours and without the chief doctor's permission. Other than maintaining that argument, the Government have not sought to refer to a legal basis for the interference.

56. The Court observes that the Government's arguments do not find support in the national legislation and that the Government have not referred to any legal provisions which prohibit the distribution of leaflets in hospitals during working hours and without the hospital administration's permission. Indeed, in the words of the police officer's superiors, "there was nothing wrong with the applicant distributing the leaflets" (see paragraph 12 above). Furthermore, no administrative or criminal proceedings have been brought against the applicant in connection with her distribution of the leaflets.

57. In the light of the foregoing, the Court finds that the restrictions on the applicant's trade union activities were not "prescribed by law", within the meaning of Article 11 § 2 of the Convention. This conclusion makes it unnecessary to examine whether the other requirements of paragraph 2 of Article 11 were complied with.

58. It follows that there has been a violation of Article 11 of the Convention.

III. APPLICATION OF ARTICLE 41 OF THE CONVENTION

59. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

A. Damage

60. The applicant claimed 5,000 euros (EUR) in respect of non-pecuniary damage.

61. The Government considered the sum claimed by the applicant to be unreasonable, unacceptable, unjust and excessive, and invited the Court not to allow the applicant to use non-pecuniary damage as a source of unjust enrichment.

62. The Court awards the applicant the sum claimed by her in full, that is EUR 5,000, in respect of non-pecuniary damage.

B. Costs and expenses

63. The applicant also claimed EUR 3,000 for the costs and expenses incurred before the Court. EUR 1,980 of this sum was claimed in respect of the fees of the applicant's legal representative for which the applicant submitted to the Court a time-sheet, showing the hours of work done by the legal representative. The remaining EUR 1,020 was claimed in respect of translation, postal and stationery expenses for which the applicant did not submit any documents to the Court.

64. According to the Government, it did not appear that the applicant's claim for costs and expenses was reasonable or substantiated by adequate documentary evidence.

65. According to the Court's case-law, an applicant is entitled to the reimbursement of costs and expenses only in so far as it has been shown that these have been actually and necessarily incurred and are reasonable as to quantum. In the present case, regard being had to the documents in its possession and the above criteria, the Court considers it reasonable to award the sum of EUR 1,500 for the proceedings before the Court.

C. Default interest

66. The Court considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT,

1. *Declares*, unanimously, the application admissible;

2. *Holds*, by four votes to three, that there has been a violation of Article 5 § 1 of the Convention;

3. *Holds*, by four votes to three, that there has been a violation of Article 11 of the Convention;

4. *Holds*, by four votes to three,
   (a) that the respondent State is to pay the applicant, within three months from the date on which the judgment becomes final in accordance with Article 44 § 2 of the Convention, the following amounts, to be converted into the currency of the respondent State at the rate applicable at the date of settlement:

(i) EUR 5,000 (five thousand euros), plus any tax that may be chargeable, in respect of non-pecuniary damage;
(ii) EUR 1,500 (one thousand five hundred euros), plus any tax that may be chargeable to the applicant, in respect of costs and expenses;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

5. *Dismisses*, unanimously, the remainder of the applicant's claim for just satisfaction.

Done in English, and notified in writing on 10 September 2013, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Stanley Naismith
Registrar

Guido Raimondi
President

In accordance with Article 45 § 2 of the Convention and Rule 74 § 2 of the Rules of Court, the following separate opinion of Judges D. Jočienė, I. Karakaş and H. Keller is annexed to this judgment.

G.R.A.
S.H.N.

DISSENTING OPINION OF JUDGES JOČIENĖ, KARAKAŞ AND KELLER

We are not convinced that the manner in which the applicant was treated amounted to a deprivation of liberty.

According to the facts of the case, the applicant, who was a nurse, was distributing a leaflet during her working hours at the hospital. She was asked by a police officer whether she had permission from the hospital administration to distribute the said leaflet, of which he requested a copy. The applicant refused to give him one. She was invited by the officer to the hospital's police office so that the leaflets could be examined. She refused and the officer pulled her arm. This act, while not reaching the threshold of treatment contrary to Article 3 of the Convention, explains the redness in her arm.

The Chief Doctor of the hospital was informed about the incident, and the applicant remained in the hospital's police office until the Chief Doctor and hospital director arrived. The Chief Doctor then sent the applicant back to her work area. Here it becomes clear that the applicant had not in fact been taken into detention. It is important to stress that she was able to leave the room on the order of the Chief Doctor; it was he, and not the police officer, who "released" her. She merely sat in a hospital room, used by the police, for a period of less than one hour until the Chief Doctor arrived. The applicant was not therefore deprived of her liberty in the meaning of Article 5 § 1.

We would point out that, under the Court's established case-law, Article 5 § 1 is not concerned with mere restrictions on liberty of movement, which are governed by Article 2 of Protocol No. 4 (see *H.M. v. Switzerland*, no. 39187/98, § 40, ECHR 2002-II; *Nada v. Switzerland* [GC], no. 10593/08, § 225, ECHR 2012; *Austin and Others v. the United Kingdom* [GC], nos. 39692/09, 40713/09 and 41008/09, § 57, ECHR 2012).

In order to determine whether someone has been "deprived of his liberty" within the meaning of Article 5 § 1, the starting point must be his or her concrete situation, and account must be taken of a whole range of criteria, such as the type, duration, effects and manner of implementation of the measure in question. The difference between deprivation and restriction of liberty is one of degree or intensity, and not of nature or substance (see *Engel and Others v. the Netherlands*, 8 June 1976, § 59, Series A no. 22; *Guzzardi v. Italy*, 6 November 1980, § 92-93, Series A no. 39; *Medvedyev and Others v. France* [GC], no. 3394/03, § 73, ECHR 2010; and *Austin and Others v. the United Kingdom, cited above,* § 57).

Even if it is not excluded that Article 5 § 1 may apply to deprivations of liberty of a very short duration (see *X v. Germany*, no. 8819/79, Commission decision of 19 March 1981, Decisions and Reports (DR) 24, pp. 158, 161), the Convention organs' case-law shows that this provision

was considered inapplicable in cases in which the applicants' stay in a police station lasted only a few hours and did not extend beyond the time strictly necessary to accomplish certain formalities (see *Guenat v. Switzerland*, no. 24722/94, Commission decision of 10 April 1995, Decisions and Reports (DR) 81, pp. 130, 134; *Foka v. Turkey*, no**.** 28940/95, § 75, 24 June 2008, and, *a contrario Venskute v. Lithuania*, no. 10645/08, § 74, 11 December 2012) or where the applicants waited in a courtyard for a relatively short period (see *Pavlides and Georgakis v. Turkey*, nos. 9130/09 and 9143/09, § 23, decision of 2 July 2013) or were subjected to kettling (see *Austin and Others*, cited above, § 68).

In all of these cases, the restrictive nature of the measures concerned was not sufficient to bring them within the scope of Article 5§1.

In the light of these considerations and the relatively short period during which the applicant waited in a room until the Chief Doctor arrived, we are of the opinion that she was not deprived of her liberty within the meaning of Article 5 § 1 of the Convention and that there has therefore been no violation of this provision.